

Mr. Nirmalia Bhattacharya vs Ms. Sonali Mukherjee on 6 February, 2026

Author: K.Lakshman

Bench: K. Lakshman

IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD

THE HON'BLE SRI JUSTICE K. LAKSHMAN
AND
THE HON'BLE SRI JUSTICE B.R.MADHUSUDHAN RAO

Family Court Appeal No.65 of 2021
Date: 06.02.2026

Between:
XXXXXXXXX ...Appellant
And
XXXXXXXXX ...Respondent

JUDGMENT:

(Per Hon'ble Sri Justice K.Lakshman) Heard Sri P.Vidyasagar Reddy, learned counsel representing Sri E.Sambasiva Pratap, learned counsel for the appellant.

2. Notice sent to the respondent is returned with an endorsement 'No such person in this address'. Sending notice to the respondent to the address available is sufficient service in terms of Section 27 of the General Clauses Act. Even then, there is no representation on behalf of the respondent.

3. Feeling aggrieved and dissatisfied with the order dated 29.11.2013 in F.C.O.P.No.377 of 2013 passed by the learned Judge, Family Court at Hyderabad, appellant preferred the present appeal. The appellant is the husband, and the respondent is the wife.

4. Respondent has filed an application under Section 13(1)(ia) of Hindu Marriage Act, 1955 r/w Section 7 of Family Courts Act against the appellant seeking dissolution of marriage and also to grant permanent alimony of Rs.50.00 lakhs, also to return gold ornaments and also to cancel the marriage certificate vide marriage certificate dated 03.03.2012. She has contended that her marriage with the appellant was performed on 02.03.2012 as per Hindu rites and customs. It is an arranged marriage. It was performed at APSRTC Kalyana Mandapam, Bagh Lingampally, Hyderabad. The said marriage alliance was through Newspaper and portal. She gave the name of Hyderabad or Bangalore as intended place of residence and the appellant agreed for the same. Thereafter, both families had discussions and later both parties and their respective parents agreed to proceed with the marriage. Accordingly, marriage was performed on 02.03.2012 and the same was registered on 03.03.2012.

5. She has further contended that after the marriage, they went to appellant parents house situated at Sibpur, Howrah, West Bengal, accompanied by her parents. They stayed there for about five days. During the said period, as per the custom prevailing in Bengali culture, the nuptial ceremony was arranged by the appellant's family at their house. The appellant herein did not make any effort to consummate the marriage for the reasons best known to him and even on the remaining days when they lived together, there was no consummation of the marriage. The appellant, without any reasonable cause failed to consummate the marriage though the respondent was ready and later also, he badly failed to consummate the marriage.

6. It is further alleged that when she questioned the appellant for non-consummation of marriage, he was silent and could not dare to explain the reasons for non- consummation. After staying there at Howrah both returned to Hyderabad and stayed in the house of her parents for about three days. During the said period also, appellant herein failed to consummate the marriage, though she was ready.

7. It is further alleged that the appellant was working at Kolkata, he left the company of the respondent on 11.03.2012 and never bothered to even talk with the respondent properly and all his answers were evasive in nature.

8. It is further contended by the respondent that despite best efforts, she could not get him back. There are several correspondences between her and the appellant. She wanted to save the marriage and all her efforts went in vain.

9. She has further contended that with a view to divert the non-consummation of the marriage, the appellant and his family members humiliated, harassed the respondent by concocting the story of theft, which was unbearable in nature. The appellant with a view to get rid of the respondent, made all the attempts to assassinate the character and integrity of the respondent. He created canards against the respondent. She has not stolen any ornaments and it is a conspiracy against her to get rid of her. Vexed with such acts of the appellant, she decided to obtain decree of divorce. Thus, the appellant herein subjected her to cruelty and the marriage was broken down irretrievably. He also used to threaten her to initiate divorce proceedings against her. He has also sent e-mails to the said effect. With the said contention, she filed the aforesaid O.P seeking dissolution of marriage and also seeking permanent alimony of Rs.50.00 lakhs and also to return her gold ornaments.

10. Despite receipt of notice, appellant herein failed to attend the Family Court and he was set exparte.

11. To prove the said claim, respondent examined herself as P.W.1 and filed Ex.P1/wedding card, Ex.P2/marriage photograph and Ex.P3/marriage certificate.

12. On consideration of the said evidence, learned Family court allowed the said OP in part dissolving the marriage of the appellant with the respondent and also awarded an amount of Rs.25.00 lakhs to her towards permanent alimony.

13. Appellant herein has also filed an application under Order 9 Rule 13 of CPC to set aside said exparte in I.A.No.172 of 2014 in O.P.No.377 of 2013 and the same was dismissed on 03.08.2015. Challenging the said order, appellant preferred the appeal vide FCA No.244 of 2015.

14. Considering the fact that the appellant has already filed the present appeal challenging the impugned order dated 29.11.2013 in FCOP No.377 of 2013, we have dismissed FCA No.244 of 2015 on 02.02.2026.

15. During the course of hearing, learned counsel for the appellant brought to the notice of this Court that she used to work in Bangalore at that particular point of time and she is a Software Engineer earning Rs.67.00 lakhs per annum. She has suppressed the said facts. Without considering the said aspect, learned Family Court awarded an amount of Rs.25.00 lakhs towards permanent alimony.

16. As discussed supra, the marriage of the appellant with the respondent was performed on 02.03.2012. Even according to the respondent, the appellant left the company of the respondent on 11.03.2012 itself. Even according to her, the marriage was not consummated. Thus they hardly stayed together for nine days only. Without considering the said aspects, learned Family Court awarded an amount of Rs.25.00 lakhs towards permanent alimony.

17. Though, in the aforesaid FCOP, the respondent claimed an amount of Rs.50.00 lakhs from the appellant towards permanent alimony, contending that the appellant used to work as a Software Engineer and since last 8 years, his income was Rs.60 lakhs per annum, she has not filed any document in proof of the same. Though she has also sought return of gold ornaments, she did not give details of the said gold ornaments.

18. Perusal of the record would reveal that the appellant had filed an application under Section 12 of the Hindu Marriage Act, 1955 vide Matrimonial Suit No.377 of 2012 on the file of Additional District Judge, 3rd Court, Howrah, West Bengal, against the respondent, seeking dissolution of marriage on the ground of nullity. Respondent was set exparte. Learned Additional District Judge, 3rd Court, Howrah, West Bengal allowed the application on 31.07.2013 declaring the marriage of the appellant with the respondent as nullity for non consummation of marriage.

19. As discussed supra, the impugned order is an exparte order. Respondent has already filed an application under Order 9 Rule 13 CPC to set aside the said exparte order. In the affidavit filed in support of the said I.A.No.172 of 2014, he has specifically mentioned about the aforesaid order granted by learned Additional District Judge, 3rd Court, Howrah, West Bengal, declaring the marriage of the appellant with the respondent as a nullity. Even then, she did not take any steps to challenge the said order. It had attained finality.

20. The said aspects were not brought to the notice of the learned Family Court while passing the impugned order.

21. In the light of the same, the impugned order dated 29.11.2013 in FCOP No.377 of 2013 passed by the learned Judge, Family Court, Hyderabad is set aside.

22. Accordingly, this Family Court Appeal is allowed. Miscellaneous applications, if any, shall stand closed. There shall be no order as to costs.

_____ K. LAKSHMAN, J _____
B.R.MADHUSUDHAN RAO, J 6th February, 2026.

KVS THE HON'BLE SRI JUSTICE K. LAKSHMAN AND THE HON'BLE SRI JUSTICE
B.R.MADHUSUDHAN RAO 6th February, 2026 KVS